IN THE HIGH COURT OF ORISSA AT CUTTACK
WP(C) No.34921 of 2026
CNR No. ODHC010831192026

Srimati Das ..... ***Petitioner***

Represented by Adv. – Mr. Niranjan Lenka

-versus-

State Of Odisha & others ..... ***Opposite Parties***

Represented by Adv. –

Mr. M.R. Mohanty, AGA

CORAM:
MR. JUSTICE SASHIKANTA MISHRA

ORDER
23.10.2026

Order No.

01. 1. This matter is taken up through hybrid mode.

2. The Petitioner has approached this Court with the following prayer.

> "*It is therefore, prayed that this Hon'ble Court may graciously be pleased to admit the writ application, issue rule NISI in the nature of writ of mandamus or any other writ/writs as deem fit and proper calling upon the Opp. Parties, particularly the Opp.Parties No.4 to show cause as to why the eviction notice dtd.l 1.09.2026 issued by the Tahasildar Baripada in Encroachment Case No.4-523/2026 Vide Annexure-7 and all actions pursuant there to shall not be quashed, and why the said Opp.Party No.4 shall not be directed to take steps for settlement of said land in favour of the petitioner.*

In the event of the Opp. Parties fail to show-cause or show insufficient cause said rule be made absolute.

And further be pleased to pass any order/orders direction/directions as deem fit and proper.

And for this act of kindness the petitioner shall as in duly bound ever pray."

3. Since the notice in Form-kha under Section 6(1) has already been issued, which can be challenged in the appeal, the Writ Application is disposed of granting liberty to the Petitioner to prefer appeal before the appropriate authority within ten days from today. If such appeal is preferred the same shall be admitted, heard and disposed of in accordance with law.

4. This Court directs that no coercive action shall be taken against the Petitioner for a period of fifteen days from today.

5. It shall be open to the Petitioner to pray for grant of similar interim order of protection by the Appellate Authority by filing necessary application.

(Sashikanta Mishra)
Vacation Judge

Sipra

Signature Not Verified
Digitally Signed
Signed by: SIPRA MUDULI
Designation: Senior Stenographer
Reason: Authentication
Location: High Court of Orissa, Cuttack
Date: 23-Oct-2026 20:06:07